

CV-24-009921 BARCLAYS BANK DELAWARE vs PULLUM, ALTON – Defendant's Motion to Compel Arbitration & Request for Stay & Dismissal - GRANTED, unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2027-04-30

Motion: The Court exercises its discretion to consider Defendant's motion notwithstanding the absence of a supporting Memorandum of Points and Authorities. California Rules of Court, Rule 3.1113; Phillips v. Barron (1958) 158 Cal.App.2d 316; Avalos v. Welty (1965) 237 Cal.App.2d 545. The Court finds that a valid arbitration agreement exists between the parties covering the instant dispute as contained in the parties' Cardmember Agreement. Civ. Proc. Code § 1281 et seq; In re Uber Technologies Wage and Hour Cases, (2023) 95 Cal.App.5th 1297; Montemayor v. Ford Motor Co. (2023) 92 Cal.App.5th 958; 9 U.S.C.A. § 1 et seq; Cisneros Alvarez v. Altamed Health Services Corporation (2021) 60 Cal.App.5th 572. The Court further finds that Defendant has not engaged in any conduct herein inconsistent with the right to arbitrate or demonstrating a waiver of such right. Apart from filing his Answer, Defendant has only invoked the litigation machinery by the filing of his two Motions to Compel Arbitration herein. Davis v. Shiekh Shoes, LLC, (2022) 84 Cal. App. 5th 956. This conduct supports a conclusion that the parties were not well into preparation of the lawsuit before Defendant filed the present motion. Quach v. California Com. Club, Inc., (2022) 78 Cal. App. 5th 470, 293. Accordingly, Defendant's motion to compel arbitration of the instant dispute is hereby granted. U.S.C.A. § 1 et seq.; Civ. Proc. Code § 1280 et seq). The action is stayed pending the completion of arbitration. 9 U.S.C.A. § 3 and Civ Proc. Code § 1281.4; Tas-T-Nut Co. v. Continental Nut Co., (1954) 125 Cal. App. 2d 351. Defendant shall take steps to initiate arbitration within a reasonable time according to the terms of the Arbitration agreement at issue and pursuant to the terms of the American Arbitration Association, the arbitration provider under the arbitration agreement. Defendant shall submit a proposed order that conforms with the Court's ruling by September 30, 2026. The Court sets a Case Management Conference for Monday, September 20, 2027, at 8:30 a.m. in Department 24. The following are the tentative rulings for cases calendared before Commissioner Richard Moths in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA: ***There are no Tentative Rulings for Department 19*** Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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